

Riverside Booksellers Ass'n v. City of Fairmont - Order Denying Preliminary Injunction

Order Denying Preliminary Injunction in Riverside Booksellers Ass'n v. City of Fairmont. Procedural posture: District court denied a preliminary injunction against a city licensing ordinance, and appellant seeks emergency relief pending appeal. Record material: Appellant filed a notice of appeal within fourteen days of the injunction order. Issue: Expedited briefing and emergency handling. Standard of review: discretionary case-management review. Record excerpt: Festival calendar. The annual city festival begins in twelve days and includes the area covered by the ordinance. Nature of suit: Civil Rights - First Amendment. Lower tribunal: U.S. District Court for the Northern District of West Virginia.